

Court No. - 3

Case :- WRIT - C No. - 17624 of 2021

Petitioner :- Kamlesh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Akhtar Ali

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Shri Akhtar Ali, learned counsel for the petitioner; learned Standing Counsel for the State and Narendra Kumar Tiwari, learned counsel for the respondent no.2.

Present petition has been filed against the notice dated 22.10.2020 issued by respondent no.2 seeking electricity charges being Rs. 7,41,602/- due to the petitioner.

According to the petitioner, the electricity connection has been discontinued in the year 2013. However, the respondent claims that they have information that the electricity connection has been used by the petitioner uptill 2020. In any case, it is not in dispute between the parties that no permanent disconnection has been sought or made.

Accordingly, the liability to pay for the active connection would remain on the petitioner for the quantification of the demand, as disputed.

Submission of learned counsel for the petitioner is that against the demand for electricity charges due, petitioner has filed an objection dated 24.5.2021 (Annexure no.6 to the writ petition) wherein he has prayed for (i) correction of the bill and; (ii) payment through installments.

Insofar as prayer (i) made by the petitioner with respect to correction, is referable to provision of Clause 6.5 of the

Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), the present petition is ***disposed of*** with a direction, in case, petitioner complies with Clause 6.5(b)(ii) of the Code within a period of one month from today and makes a deposit of Rs. 2,50,000/- before the respondent no. 2, the said authority may proceed to pass appropriate orders regarding correction, as prayed for within a period of two weeks' thereafter.

For a period of six weeks' from today or till the disposal of the petitioner's objection whichever is earlier, no coercive measure shall be adopted against the petitioner.

Order Date :- 29.7.2021

Saurabh